

misconduct were treated as sufficient to bar suit for any subsequent breach or misconduct]. The Demurrer is overruled on this basis.

In regard to the economic loss rule, the Court finds that the allegations of property damage against Defendant are sufficiently alleged as injury to "other property." While Defendant argues that if the property damage is of the contractual item itself the remedy lies solely in contract, barring the tort claim, here the Court finds that the lease agreement includes the ability to occupy the premises, and is not a contract for the property itself. The property damages alleged therefore sound in tort and the Demurrer is overruled on this basis. The Court finds that Plaintiff has sufficiently stated a cause of action for property damage as to the Defendant [see TAC at ¶¶43-51], and the Demurrer to the Fifth Cause of Action for Property Damage is overruled.

Defendant Brian Howe's Demurrer to Third Amended Complaint is overruled in its entirety. Likewise, in regard to Defendant Brian Howe's Motion to Strike Third Amended Complaint, for the same reasons discussed above, the Motion is denied in its entirety. Defendant Brian Howe is to file and serve his Answer to the Third Amended Complaint within 20 days' of this hearing, but no later than July 14, 2026. Counsel for the Plaintiffs shall prepare and submit a form of order consistent with this ruling within two weeks.

5. 24CV02467 DOE, JANE V. CHICO UNIFIED SCHOOL DISTRICT

EVENT: Motion for Summary Judgment/Summary Adjudication by Defendant Chico Unified School District

Defendant Chico Unified School District's ("the District" herein) Request for Judicial Notice is granted.

Education Code §35330 provides that all persons making a school-sponsored field trip or excursion are "deemed to have waived all claims against the district... for injury, accident, illness, or death occurring during or by reason of the field trip or excursion." Here, the Court finds that there is a triable issue of material fact as to whether the outdoor science program in Yosemite was a "field trip" or "excursion" for purposes of determining whether the District has immunity under *Education Code* §35330. [See Additional Undisputed Material Facts ("AMF" herein) Nos. 14-28]. Furthermore, while not controlling, the Court is persuaded by the concurring opinion presented in *Doe v. Mount Pleasant Elementary School Dist.* (2025) 113 Cal.App.5th 1208, wherein there was an acknowledgment that providing absolute immunity to school districts under *Education Code* §35330, for all injuries suffered by students on field trips - specifically including sexual abuse - runs directly "counter to the compelling state interest of protecting children from sexual abuse." *Id.* at 1233. Therefore, even if the Court were to find that the outdoor science program was a field trip or excursion, the Court finds that the District failed to meet its initial burden of showing no triable issue of material fact exists as to whether the immunity set forth in *Education Code* §35330 would apply to the District's alleged negligent acts. The Motion is therefore denied in this regard.

The Court finds that the District's duty to supervise under *Education Code* §44807 and potential immunity from liability under *Education Code* §44808, are directly related and whether the Court finds that there was no duty under *Education Code* §44807 (for incidents that occur while on school campus), does not in itself absolve the District from liability (for incidents that occur while off school campus). Under *Education Code* §44808 that Section "grants a district immunity unless a student was (or should have been) directly supervised during a specified undertaking." See, *Wolfe v. Dublin Unified School District* (1997) 56 Cal.App.4th 126, 129; *Doe v. Mount Pleasant Elementary School Dist.* (2025) 113 Cal.App.5th 1208, 1217, 1222-1223. Here, the Court finds that Defendant has failed to meet its initial burden regarding the immunity set forth in *Education Code* §44808, specifically by failing to show no triable issue of material fact exists as to whether that the outdoor science program was not a school-sponsored activity off the premises of the school, or the District otherwise specifically assumed such responsibility or liability. The Motion is therefore denied in this regard.

The workers' compensation exclusivity rule is an affirmative defense which is the defendant's burden to prove. *Doney v. Tambouratgis* (1979) 23 Cal.3d 91, 96. Here, the Court finds that the District has failed to meet its initial burden to show that no triable issue of material fact exists as to whether Plaintiff was an employee whose exclusive remedy lies in workers' compensation, and the action barred by the exclusive workers' compensation remedy provisions of the *Labor Code*. The Motion is denied in this regard.

Finally, as to the Federal Enclave issue, the Court find that 28 USC §5001(b) incorporates California law to govern personal injury claims arising on federal land within the state and because California law recognizes emotional distress as a compensable personal injury - without requiring physical injury - such injuries are covered under the statute. The Motion is thus denied on this basis.

The Motion for Summary Judgment/Summary Adjudication by Defendant Chico Unified School District is denied in its entirety. Counsel for the Plaintiff shall submit a form of order consistent with this ruling within two weeks.

6. 25CV00636 INGRAHAM, STEPHANIE ET AL V. RICKERTSEN, TYLER

EVENT: Motion to be Relieved as Counsel

The Motion to Be Relieved as Counsel is granted, and Steve Simblin is relieved as counsel for Plaintiff Lupita Valdovinos. The Court will utilize the form of order submitted by counsel with modification to Paragraph 5, to indicate that the Order is effective upon the filing of the proof of service of the signed order upon the client.

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